

Travel & Work from Outside the Designated Work Country - Guidelines

This guideline is applicable to all onsite folks. This policy is to be referred to when one wants to raise a request with regards to travel outside their designated work country. It is created to comply with other laws and legalities. It consists of important HR & Immigration Guidelines from a travel perspective.

General Guidelines:

- An individual can work from India (Affine's HQ) for up to 10 business days (with Manager's Approval) and apply for leaves for the remaining duration of stay
- Any requirement to work from India beyond 10 days requires Senior Management Approval
- If the individual exhausts the leaves in their account and utilizes the 10 Business Days for work from outside, they are then transferred to India Payroll for the remaining duration outside. Will be re-transferred to the onsite payroll once they travel back
- Overall duration of stay outside of designated work location is capped at 2 months. In case the individual is unable to return within the said time, Affine is within its right to replace the individual's role and position per business need

Immigrations:

USA:

OPT/CPT Folks:

- The individual needs to inform the school DSO and ascertain risks prior to reaching out to Manager/Immigration for Approval
- If an individual does not have leaves available, he/she will fall under LOP. LOP days will count towards the total unemployment days on OPT (90 days max out)/STEM OPT (150 days max out). Individuals can still apply for EL as they do not count as days of unemployment

H/L Folks:

- Advised not to work outside the US
- USCIS is still conducting site visits and can revoke a case if they notice that an individual is outside the US and working remotely
- Travel on such visas is not advised because we do not know how the CBP officers will react at the port of entry.
- In case they need to travel (on emergency) it is advised that they apply for a leave and then travel
- Additional scrutiny on future renewals by USCIS – on need or presence to operate from US

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GC/US citizens:

- Can travel and have no restrictions as such
- Long term stay outside the US (3-4 months) can impact GC Status

Other Countries:

Singapore EP/Canada PR/UK PR:

- Individual needs to speak to respective legal team before planning long term travel
- Long term stay outside the respective country can impact the visa status and need for one to remain on such employment within the country

HR:

- Manager approval in written is mandatory for travel plan to home country/hometown 1 month prior to such travel. Since it would be Manager's responsibility to ensure the work is seamless.
- An individual will have to work in the client defined work hours (PST/ EST/ CST/SST)
- If one opts to travel to home country/ hometown then they need to ensure that the productivity and communication is not impacted
- Duration of stay outside the US is capped at 2 months (i.e., 8 weeks inclusive of holidays), utilizing leaves and work from home location
- Any extension above that would not be allowed. The employee then permanently relinquishes his/her US employment opportunity, and the company holds the right to hire a replacement. The next US travel of the said employee would be on Affine's discretion.
- At maximum 2 escalations (includes internal/ client) would be acceptable considering unexpected situations, but if an individual receives 3 escalations, then they will be expected to travel back to the US on an immediate basis (within 1 week)
- They continue to be on onsite payroll while on vacation and no additional payment will be given by Affine
- If the individual wants to continue working from their hometown/outside the designated work location (post leave utilization), they will be transferred to India Payroll and will receive Night Shift Allowance if working in PST/EST/CST/SST hours
- Affine will not bear any travel cost, neither any other continuing expenses in the designated work location while the employee is in India.
- Affine shall not be responsible if the travel is obstructed either due to travel restrictions or visa related complications
- Basis requirement, if the individual will be required to work from our Bangalore office - relocation assistance will be provided as per the company policy

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